

BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIEASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SR.....ASSOCIATE JUSTICE
BEFORE HER HONOR: CEANEH D. CLINTON-JOHNSON.....ASSOCIATE JUSTICE

Jonathan O. Swee, Sr., Abraham M. Tarr, Robert)

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MOTION TO DISMISS APPEAL

ACTION OF EJECTMENT

Tarr, Administrators of the Intestate Estate of the)
Money Swee Jahwah and others to be)
identified.....2ND Respondent)

JUDGMENT WITHOUT OPINION

When this case was called for hearing, Counsellors Benjamin B. Stewart, Jr. appeared for the movant. Counsellor S.L. Lofen Kaneah, Jr. appeared for the respondents.

The Movant, Benoni W. Urey, filed a motion to dismiss the appeal announced by the respondents, on the basis that the respondents having filed their bill of exceptions within statutory time, failed to comply with the remaining mandatory steps of appeal, that is, the filing and service of an appeal bond and the filing and service of the notice of completion of appeal consistent with *Civil Procedure Law, Rev. 1:51.4*.

That following the notation of representations and by leave of Court, the Counsel representing the respondents made a submission which we quote verbatim:

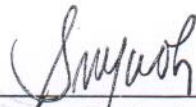
"That at this stage, counsel for the respondents says that after the judgment was rendered by the lower court, he filed his bill of exceptions and requested the respondent (his clients), to facilitate the filing of an appeal bond but they had no interest in the case, therefore, the bond was not filed. Counsel therefore concedes to the motion to dismiss the appeal. And respectfully submits."

It is the law that "all admissions made by a party himself or by his agent acting within the scope of his authority are admissible." *Civil Procedure Law, Rev. Code: 1.25.8.1*. Hence, by virtue of the concession made by the counsel for the respondents, it is hereby

ADJUDGED:

That the motion to dismiss the appeal is hereby granted, and the appeal ordered dismissed as a matter of law. The Clerk of this Court is ordered to send a Mandate to the trial court, commanding the judge presiding therein to resume jurisdiction over this case and enforce its final ruling of February 22, 2024. Costs are ruled against the respondents. AND IT IS HEREBY SO ORDERED.

GIVEN UNDER OUR HANDS AND THE SEAL OF
THE HONORABLE SUPREME COURT OF LIBERIA
THIS 28TH DAY OF MAY, A.D. 2025



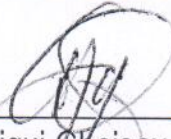
Sie-A-Nyene G. Yuoh
CHIEF JUSTICE, SUPREME COURT OF LIBERIA



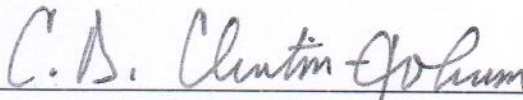
Jamesetta Howard Wolokolie
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA



Yussif D. Kaba
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA



Yamie Quiqui Gbeisay, Sr.
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA



Ceaineh D. Clinton-Johnson
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA